

The Madurai City Municipal Corporation Class III-Town Planning Service Rules, 1980

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The Madurai City Municipal Corporation Class III-Town Planning Service Rules, 1980

Rule THE-MADURAI-CITY-MUNICIPAL-CORPORATION-CLASS-III-TOWN-PLANNING-SERVICE-RULES-1980 of
1980

Published on 9 July 1980

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The Madurai City Municipal Corporation Class III-Town Planning Service Rules, 1980

Published vide Notification G.O.Ms. No. 1039, Rural Development and Local Administration, date 9th July, 1980

No. SRO A-244/80. - In exercise of the powers conferred by sub-section (1) of section 431 read with sub-section (1) of section 106 of the Madurai City Municipal Corporation Act, 1971 (Tamil Nadu Act

15 of 1971

), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These rules shall be called the Madurai City Municipal Corporation Class III-Town Planning Service Rules, 1980.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(i)

"Corporation Service" shall mean any one of the Corporation Service;

(ii)

"Member of the Service" shall mean any person who has been appointed to the service and who has not retired or resigned or has been removed or dismissed or has been discharged otherwise than for want of a vacancy. He may be a probationer or a full member of that service.

3.

Constitution.

- The service shall consist of the following categories, namely:-

(1)

Assistant Town Planning Officer, Grade II.

(2)

Assistant Town Planning Officer, Grade III.

(3)

Town Planning Inspector.

(4)

Town Planning Surveyor and Building Draftsman.

(5)

Town Planning Tracer.

4.

Method of appointment.

(a)

Appointment to the posts specified in column (1) of the table below shall be made by the methods specified in the corresponding entries in column (2) thereof.

Post

Method of Appointment

(1)

(2)

Category 1:

Assistant Town Planning Officer Grade II.

(i) By direct

recruitment; and

(ii) By promotion from the posts of Town

Planning Officer Grade III.

Category 2:

Assistant Town Planning Officer, Grade III.

(i) By direct

recruitment; and

(ii) By promotion from the post of Town Planning

Inspector

Category 3:

Town Planning Inspector.

(i) By direct

recruitment; and

(ii) By promotion from the post of Town Planning

Tracer.

Category 4:

Town Planning Surveyor and Building Draftsman.

(i) By direct
recruitment; and

(ii) By promotion from the post of Town Planning
Tracer

Category 5:

Town Planning Tracer.

(i) By direct recruitment.

(b)

Appointment to each category by direct recruitment and by promotion shall be made in the ratio of 1:2 excepting category 5 which is only to be filled up by direct recruitment.

(c)

One third of all substantive vacancies arising in categories 1,2,3 and 4 of one third of long-standing temporary vacancies arising in the said categories shall be reserved to be filled by direct recruitment.

Explanation. - Any vacancy anticipated to be of two years duration shall be deemed to be a long-standing vacancy within the meaning of this rule.

5.

Appointing authority.

- The appointing authority in respect of all the categories specified in this service shall be the Appointments Committee of the Corporation.

6.

Minimum qualification.

- No person shall be eligible for appointment to any of the post, unless he possess the Minimum General Educational Qualification.

7.

Special and Technical Qualification.

- No person shall be eligible for appointment to the post specified in column (1) of the table below by the methods specified in the corresponding entries in column (2), unless he possess the qualification specified in the corresponding entries in column (3) thereof.

Post

Method of Appointment

Qualifications

(1)

(2)

(3)

Category 1 - Assistant Town Planning

Officer-Grade II

By direct recruitment

(i) Must possess a degree of B. Arch, of any
University recognised by the University Grants Commission for the
purpose of its grants or diploma in Architecture recognised as
equivalent to the National Diploma in Architecture; or

(ii) Associate of Indian Institute of
Architects; or

(iii) A degree in Civil Engineering of any
University recognised by University Grants Commission for the
purposes of its grant; or

(iv) Must have passed Section A and B of the
Associate Membership of Institute of Engineers (India)
Examination in Civil Engineering group; or

(v) Must possess the Post Licentiate Diploma in

Town and Country Planning by transfer or otherwise, shall be taken into account for the total period of ten years of service;

Category 2 - Assistant Town Officer

By promotion

Provided that an individual in Planning service possessing the requisite Grade III qualification prescribed for direct recruitment may be considered for promotion against the vacancy intended for direct recruitment if he is found suitable.

Category 3 - Town Planning Inspector

By direct recruitment

(i) Must possess L.C.E. Diploma in Civil Engineering of the Board of Technical Education of the Government of Tamil Nadu or any other higher qualification or any qualification recognised by the Government of Tamil Nadu; or

(ii) Pass in the Higher Grade in the Government Technical Examination in the following subjects:-

- (1) Applied Mechanics
- (2) Building Drawing and Estimating
- (3) Building Materials and Construction.
- (4) Surveying and levelling and pass in the

Lower in:

- (a) Earth Work and Road Making; and
- (b) Geometrical Drawing; or the Government Technical Examination, in the following subjects:

(iii) Pass in Draughtsmanship (Civil) Course under the revised syllabus introduced from July 1952 conducted by the Government of India, Ministry of Labour with experience in Town Planning for a period of not less than two years

By promotion

Town Planning Tracer possessing anyone of the qualification prescribed for direct recruitment of Town Planning Inspector or Town Planning-Surveyor and Building Draughtsman.

Category 4 - Town Planning Surveyor and Building Draughtsman

By direct recruitment

Must possess any of the qualifications prescribed for direct recruitment of Town Planning Inspector; Town Planning Tracer possessing any one of the qualifications prescribed for direct recruitment of Town Planning Inspector or Town Planning Surveyor and Building Draughtsman.

Category 5 - Town Planning Tracer

By direct recruitment

- (i) Must possess any of the qualifications prescribed for direct for recruitment of Town Planning Inspector; or
- (ii) A completed Secondary School Leaving Certificate issued under the authority of Government of Tamil Nadu with a pass in "Engineering" as special subject in the bifurcated course in Secondary School.

8.

Age.

- No person shall be eligible for appointment by direct recruitment, if he has completed or will complete 30 years of age on the 1st day of July of the year in which the selection for appointment is made:

Provided that a candidate belonging to Scheduled Castes or Scheduled Tribes shall be appointed to any of the categories in this service by direct recruitment if he has not completed 31 years of age on the said date:

Provided further that this age limit shall not apply in the case of promotion if the individual had already entered into service in the Corporation or in the service of any municipality or other local body and subsequently entered into service in the Corporation either by transfer or otherwise within the above age limit and who is in continuous service.

9.

Probation.

- Every person appointed by direct recruitment to categories 1 and 2 shall from the date on which he joins duty be on probation for a total period of two years on duty within a continuous period of three years.

Every person appointed by direct recruitment to categories 3 to 5 shall, from the date on which he joins duty, be on probation of a total period of one year on duty within a continuous period of two years:

Provided that if a person has completed his probation in the lower category, it is not necessary that he should complete his probation in the higher category.

10.

Liability to serve in the armed forces.

- Every person who is a graduate in Engineering and who is appointed to Category 1, shall, within the first 10 years of his service in the said category, be liable to serve for a minimum period of four years (including the period spent on training) in the Armed Forces or on work relating to the Defence Efforts anywhere in India or abroad if so required:

Provided that the liability to serve in the Armed Forces or on work relating to the Defence Efforts shall not ordinarily apply to a person who is above forty years of age at the time of his first appointment to the category or who has already served during the period of his service in the Department.

11.

Transfer.

- The posts of Town Planning Inspector and Town Planning Surveyor and Building Draughtsman are interchangeable.

12.

Reservation of appointments.

- The rule of reservation of appointment (General Rule 14) shall apply to the appointments made by direct recruitment to all the categories in this service.

13.

Savings.

- Unless a contrary intention is expressly indicated therein, nothing contained in these rules shall adversely affect any person holding any of the posts referred to in these rules on the date of coming into force of these rules.

14.

Promotion according to seniority.

- All promotions shall be made in accordance with seniority unless-

(1)

the promotion of a member has been withheld as a measure of penalty, or

(2)

a member does not possess the qualifications prescribed by the Special Rules for the post.

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